

been raised. The paperwork appears to be in order, with the exception that the distribution does not appear to be correct. The original Petition stated under penalty of perjury that the decedent was survived by issue of a deceased child. Those biological grandchildren were identified as Eric and Meghan. Those two would be the only intestate heirs. This issue will need to be addressed. Additionally, the report does not contain the information required by CRC Rule 7.550. The report is required to include information regarding creditor's claims (i.e., the name of the creditor, the amount of the claim, whether it was allowed or rejected, whether it was paid, and the amount that was paid. The report is required to give a description of all sales, purchases, and changes in form of assets. The report is required to provide a detailed schedule of receipts, gains, and losses where an amount other than the amount of the inventory and appraisal is used as a basis for calculating statutory fees. The matter is continued to **Monday, July 14, 2025, at 2:30 p.m. in Department 44** for further proceedings. An Amended Report and Petition is required addressing the above defects. Petitioner shall also file and timely serve a new Notice of Hearing for the continued hearing date. **No appearance is necessary on today's calendar.**

ESTATE OF THOMAS MURRAY

Case Number: 22PB-0031748

This matter is on calendar for Status of Administration. A Petition for Final Distribution has been filed and is noticed for hearing on June 30, 2025. That date is confirmed. Today's hearing has been **VACATED. No appearance is necessary on today's calendar.**

ESTATE OF LINDA NIERENBERG

Case Number: 25PB-0032814

This matter is on calendar for an Amended Petition to Determine Succession to Real Property. The matter has been properly noticed. The Petition contains the following defects:

1. The Petition fails to identify the subject property as the primary residence of the Decedent. Probate Code § 13151 was amended effective January 1, 2025. As of that date, this procedure can only be used to transfer an interest in the decedent's primary residence. Judicial Council form DE-310 was updated April 28, 2025, to reflect these changes and must be used.
2. There is no Form DE-300 or Inventory and Appraisal attached, as required under item 8.
3. The Court notes the copy of the will attached to the Petition is completely illegible.

The matter is continued to **Monday, July 14, 2025, at 2:30pm in Department 44** for further proceedings on the Petition. An Amended Petition must be filed correcting the defects on the updated Petition form. **No appearance is necessary on today's calendar.**

ESTATE OF WESLEY PHILLIPS

Case Number: 22PB-0031702

This matter is on calendar for hearing on the First and Final Account and Report and Petition for Final Distribution. The Petition indicates that the sole intestate heir, Anthony Garcia, has executed a disclaimer. The legal effect of a disclaimer is that the person disclaiming their interest in the estate is deemed to have pre-deceased the decedent. Probate Code § 282. Consequently, Anthony Garcia's intestate heirs are now the intestate heirs of the decedent and would be entitled to notice of these proceedings. Nothing has been filed identifying who Mr. Garcia's intestate heirs are, and they do not appear to have been given notice of the proceeding. The matter is continued to **Monday, July 14, 2025, at 2:30pm in Department 44** for further proceedings on the Petition. An amended Petition or supplement to the Petition is required addressing the above defect. Petitioner shall also file and timely serve a new Notice of Hearing for the continued hearing date. **No appearance is necessary on today's calendar.**